

24TRCP00102 24TRCP00102

County: los-angeles

Division: Civil Law and Motion

Department: 534

Hearing date: 2026-06-25

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Case Number: 24TRCP00102 Hearing Date: June 25, 2026 Dept: 534

Background

On June 2, 2023, Judge Valerie Salkin

formally declared Barbara Friedman a vexatious litigant in Los Angeles Superior Court case 22VESC01677 Friedman v. Wanderlust Films. Under this order, Friedman became subject to a Code of Civil Procedure section 391.7 prefiling requirement that requires Friedman to obtain the permission of the presiding judge to file new litigation. Permission is granted only if it appears the litigation has merit and is not being filed for purposes of harassment or delay. (Code Civ. Proc. § 391.7(b).) In Los Angeles Superior Court, the Presiding Judge has designated the Supervising Judge of the Civil Division to exercise this authority and responsibility for new, non-appellate, civil and probate law filings. (See Code Civ. Proc. 391.7(e).)

On March 13, 2026, this Court received

a Judicial Council form VL-110 Request to File New Litigation by Vexatious Litigant dated March 7, 2026 bearing case number 24TRCP00102 Friedman v. Troia, lodged by Friedman in propria persona indicating a desire to file a Notice of Appeal.

On March

18, 2026, this Court issued an order denying the request, noting the presiding justice of the Court of Appeal, not this Court, must determine whether Friedman can file a Notice of Appeal.

On March

26, 2026, the Court of Appeal issued an order denying Friedman's request to file new litigation in B353371 / 24TRCP00102.

On

April 24, 2026, Friedman filed a Motion for Order: Special Consideration to File Notice of Appeal requesting permission to file a Notice of Appeal. On May 14, 2026, Department 534 issued an order denying the motion, reiterating that the Administrative Presiding Judge of the Court of Appeal must determine any request to file a new appeal by a vexatious litigant.

Motion

On

May 27, 2026, Barbara Friedman filed the instant "Motion for Order: Re-Determination of VL-110 Petitioner's Objection: to VL-120 Denial by Judge Salkin; Lack of Due Process."

Discussion

In

the motion, Friedman enumerates five requested orders:

(1)

grant request for Re-evaluation and determination, to be executed by Judge Lawrence P. Riff of the VL-120, filed 04/13/26;

(2)

set aside and investigate 04/15/26, VL-125 denied decision by Judge Salkin for unethical performance by a Los Angeles Superior Court Judge, abuse of power, lack of due process and forgery of the document;

(3)

grant request for Re-determination of VL-110, "Request to file New Litigation" for approval in Dept 534;

(4)

grant approval for Petitioner to file an appeal for #24TRCP00102; and

(5)

advance the date and/or grant a

retroactive date for Petitioner to file an Appeal for case #24TRCP00102, due to lack of due process

As

an initial matter, Friedman improperly seeks relief related to orders entered in 22VESC01677 via a motion filed in unrelated case 24TRCP00102. Friedman must limit her requested relief to the proper case. The Court shall rule on the entirety of Friedman's motion, and file the order in both 22VECV01677 and 24TRCP00102.

Friedman

notes Judge Salkin denied an application to vacate the prefiling order in 22VESC01677 on April 15, 2026.

Pursuant

to Code of Civil Procedure section 391.8(b), Friedman is statutorily barred from applying to vacate the prefiling order until 12 months after that order. Because Judge Salkin has retired, Friedman's subsequent applications to vacate the prefiling order will be heard by the designee of the presiding judge to rule on such applications. (Code Civ. Proc. § 391.8(a).) Currently, the Supervising Judge of the Civil Division, who sits in Department 534, is the designee for this purpose.

Friedman's

request for "reevaluation" or to "set aside" the order entered by Judge Salkin is a motion for reconsideration under a different name. (*City and County of San Francisco v. Muller* (1960) 177 Cal.App.2d 600, 603 ("The nature of a motion is determined by the nature of the relief sought, not by the label attached to it. The law is not a mere game of words.")).) However, Friedman's motion is untimely and fails to comply with the requirements of the reconsideration statute. (Code Civ. Proc. § 1008.)

Moreover,

Friedman's motion is entirely speculative, contending without basis, that Judge Salkin's order was filed "too quickly" to have adequately reviewed Friedman's filing and the order is "unethical" or was entered without due process. Friedman does not state a basis for relief. To the extent Friedman believes the order was erroneous, her argument should be directed to the Court of Appeal and is not a basis for reconsideration. (See e.g. *Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.)

Finally,

as stated in the Court's prior orders, the Administrative Presiding Judge of the Court of Appeal must determine Friedman's requests to file a new appeal or Notice of Appeal.

Friedman's

motion, and the relief requested therein, is DENIED in its entirety.

Conclusion

Friedman's

Motion for Order: Re-Determination of VL-110 Petitioner's Objection: to VL-120

Denial by Judge Salkin; Lack of Due Process is DENIED.

Clerk

to give notice.